

WITHOUT PREJUDICE

FINAL PARENTING ORDERS

For dispute resolution conference 13 September 2024

1. That the parties have equal shared parental responsibility for Christian Finn Cooke, born 20 August 2014, and Joshua Finn Cooke, born 27 January 2017 ("the children").

2. That the children shall live with the Mother other than when living with the Father pursuant to the following Orders.

3. That the children shall live with the Father as agreed and failing agreement as follows:

(a) in Week One, from after school on Thursday (or 3pm on a non-school day) until before school on Monday (or 9am on a non-school day). In the event the Monday is a public holiday, such time shall continue until before school on Monday (or 9am on a non-school day).
and

(b) in Week Two, from after school on Wednesday to before school on Friday (or 9am on a non-school day).

4. That for the purposes of these Orders the School Holidays shall be deemed to:

(a) Commence at the conclusion of school on the last day of term (excluding pupil free days) for students at the school at which the child is enrolled and attending; and

(b) Conclude at 4:00pm NSW time on the day prior to the first day of the new school term (excluding pupil free days) for students at the school at which the child is enrolled and attending.

5. That during the School Holidays the care arrangements in Order 3 be suspended so that the children spend time with the father as agreed and failing agreement with the father as follows:

(a) School Holidays following Terms 1, 2 and 3:

- i. With the Father for the first half of each of the school holiday periods in odd numbered years and the second half in even numbered years.

(b) School Holidays following Term 4:

- i. In the Christmas 2024/25 school holiday, from 3pm Christmas Day for 14 nights and then from 22 January for the balance of the school holiday period
- ii. From and including the Christmas 2025/2026 school holiday,

- a. With the Father for the first half of each of the school holiday periods commencing in even numbered years and the second half commencing in odd numbered years subject to sub-order (c) below.
- b. In odd numbered years, in addition to (a), from 11am Christmas Day to 11 am Boxing Day.
- c. In even numbered years, the children shall live with the Mother from 11am Christmas Day to 11 am Boxing Day.

(c) That for the purpose of this Order, when a time is not specified above, change overs shall occur at 12 noon.

6. Notwithstanding any other Orders, the children spend time with the Father on Father's Day in each year from 9.00am to 5.00pm.

7. Notwithstanding any other Orders, the children spend time with the Mother on Mother's Day in each year from 9.00am to 5.00pm.

Changeovers

8. For all changeovers not occurring at school, the parent (or nominee) whose time with the children is ending shall deliver the children to the home of the other parent (or nominee).

Communication

11. That the parties shall communicate via email or text message, unless in the need of an emergency, in which case communication shall occur via telephone.

Alcohol

12. Each parent is hereby restrained from consuming alcohol to such an extent that their Blood Alcohol Concentration ("BAC") will exceed 0.05 at any time that the children are in their care, or for the period six (6) hours prior to the children coming into their care.

International Travel

13. Pursuant to Section 65Y(2)(b) of the Family Law Act 1975 (Cth), each party be at liberty to take the children from Australia to a place outside of Australia during the time that the children are living with or spending time with them, or for such other period as agreed between the parties from time to time in writing, provided that:

(a) The children are not taken to a country or jurisdiction that:

- i. Is not a Convention country listed in Schedule 2 of the Family Law (Child Abduction Convention) Regulations 1986; and

(b) The travelling party provides to the other:

- i. Not less than four (4) weeks prior to the intended departure date, written notice of his or her intention to travel;

(c) Not less than 4 weeks prior to the departure date, a detailed itinerary of the proposed travel, including details of departure and return dates, each destination, flight numbers, methods of travel, where the children will be staying, copies of documents sufficient to demonstrate that the children and the travelling party each have a paid return ticket; and

(d) Not less than 4 weeks prior to departure, copies of certificates of travel insurance which include medical cover for the children and the travelling party and which cover the children and the travelling party for each relevant destination and duration of travel.

Passports

15. That, if requested by the other party, the parties must make sure that the children have valid

Australian Passports. To make sure this occurs:

(a) The Father must give the completed application to the Mother;

(b) The Mother must sign and return the application to the Father within 14 days of receiving it;

(c) The Father must immediately lodge the completed passport application. The Father shall pay the passport fee.;

(d) The Father is to have the children passports when they are not travelling overseas with the Mother; and

(e) The Father, if requested by the Mother in writing, must give the passport to the Mother at least 6 weeks prior to any proposed travel with the children and the Mother must return the passport to the Father upon their return.

Long Term Communication Between Parties

16. That the parties:

(a) keep the other advised at all times of their current residential address and mobile telephone numbers;

(b) advise the other immediately in the event that one or both of the children suffers any serious illness or injury including details as to any medical practitioner, hospital or medical practice

attended;

(c) authorise any medical practitioner, hospital or medical practice upon or at which either child medical condition and/or requirements;

(d) authorise all schools at which the children may attend from time to time, to:

- i. provide the other, at the expense of the other, copies of all school reports, school notices and newsletters, school photographs and examples of school work in relation to the children;
- ii. communicate with the other, either by telephone, in writing or by personal attendance, in respect to the children's progress at school, and inform each other of any emergency, remedial or correctional treatment required by the children as soon as is practicable; and
- iii. permit the other to attend all school functions to which parents are normally invited; subject to any school policy in relation thereto.

Attendance at Activities

17. That each party is entitled to attend all school and extra-curricular activities involving the children, including:

(a) sporting fixtures;

(b) extra-curricular activities that allow for parental attendance;

(c) school functions and events that allow for parent attendance including but not limited to concerts, school assemblies, sports days, parent and teacher interviews and canteen duties.

Interpretation of Orders

Discipline

19. Neither parent is permitted to use physical discipline, nor will they allow a third party to do so.

Non-Denigration

20. Each party is restrained from making negative, derogatory or disparaging comments about the other parent or member of the other parent's family or household in the presence or hearing of the children.